

		court. For the purposes of this section, the term 'person' includes a witness, a party, a party's attorney, or both. "Sanctions pursuant to this section shall not be imposed except on notice contained in a party's moving or responding papers; or on the court's own motion, after notice and opportunity to be heard. An order imposing sanctions shall be in writing and shall recite in detail the conduct or circumstances justifying the order." Civ. Proc. Code § 177.5. As stated above, EMI has not provided any justification for its failure to comply with the court's October 16, 2024 order that it produce the Class Members' Data to Class Counsel within 30 days of the order, much less good cause or substantial justification. EMI therefore is ordered to pay sanctions in the amount of \$1,500.00 to the court pursuant to section 177.5 by May 15, 2025. Plaintiff's requests for sanctions pursuant to Civil Procedure Code section 575.2 and California Rule of Court 2.30 are denied, as plaintiff has not demonstrated that either section 575.2 or rule 2.30 applies here. Plaintiff's requests for an order permitting plaintiff to inspect EMI's records to obtain the Class Members' Data and for issuance of Orders to Show Cause re Contempt ordering defendants Patricia May, William May and David Moltz to personally appear are denied. Plaintiff to give notice.
9	Mora v. Diamond ZB Staffing Services, LLC, et al. 2019-01104920	<u>Plaintiff Marisela Mora's Motion to Compel Deposition</u> Plaintiff Marisela Mora moves to compel defendant Veronica G. Lake to appear for a fourth deposition. For the following reasons, plaintiff's motion is denied. Civil Procedure Code section 2025.610 states, in relevant part: "(a) Once any party has taken the deposition of any natural person, including that of a party to the action, neither the party who gave, nor any other party who has been served with a deposition notice pursuant to Section 2025.240 may take a subsequent deposition of that deponent. "(b) Notwithstanding subdivision (a), for good cause shown, the court may grant leave to take a subsequent deposition, and the parties, with the consent of any deponent who is not a party, may stipulate that a subsequent deposition be taken." Plaintiff named Lake as Doe 1 on August 2, 2023 (ROA 413), and served Lake with the summons and first amended complaint by substituted service on August 10, 2023 (ROA 431). Lake appeared in the action on October 13, 2023 when she filed a demurrer to the first amended complaint. ROA 552.

		Plaintiff deposed Lake on July 31, 2023, November 6, 2023 and February 27, 2024. "[A] natural person may be deposed only once during the run of the litigation." <i>Fairmont Ins. Co. v. Superior Court</i> (2000) 22 Cal.4th 245, 254; <i>see also McCoy v. Gustafson</i> (2009) 180 Cal.App.4th 56, 97 ("The statute prohibits taking a subsequent deposition of a person (§ 2025.610, subd. (a)), unless the parties and the deponent agree to one or the court grants leave to take a subsequent deposition 'for good cause shown.'"). Plaintiff argues she should be permitted to take a fourth deposition of Lake because Lake made statements in a December 27, 2023 declaration that allegedly contradict her earlier deposition testimony, and because Lake verified a "revised" interrogatory response that allegedly changed a prior interrogatory response served by defendant Diamond ZB Staffing. Plaintiff also argues she should be permitted to take a fourth deposition of Lake to question Lake about various allegations in the second amended complaint. None of these reasons warrants a fourth deposition of Lake. That Lake provided allegedly contradictory testimony at her deposition and in a declaration, and/or verified a discovery response that allegedly contradicts a prior response, may warrant use of the deposition testimony or the documents to impeach Lake at trial; it does not warrant a fourth deposition. As to a further deposition to address the second amended complaint, none of the allegations in the second amended complaint to which plaintiff points are sufficiently different from plaintiff's other, long-pending allegations and theories so as to justify a fourth deposition. Plaintiff's and defendant's requests for sanctions are denied. Defendant Veronica G. Lake to give notice.
10	Stickney v. State Farm General Insurance Company 2021-01231896	<u>Defendant State Farm General Insurance Company's Motion to Seal Trial Exhibit 80, Trial Exhibit 81 and Exhibit 3 to Plaintiffs' February 27, 2024 Ex Parte Application</u> Defendant State Farm General Insurance Company moves to seal Trial Exhibit 80, Trial Exhibit 81 and Exhibit 3 to plaintiffs James Stickney and April Stickney's February 27, 2024 ex parte application. Exhibit 3 contains four pages: three powerpoint slides and a one-page meeting agenda. Trial Exhibit 80 is the meeting agenda. Trial Exhibit 81 is the three powerpoint slides. The court already ordered the three powerpoint slides sealed when it granted in part defendant's previous motion to seal them. ROA 265. The court denied without prejudice defendant's previous motion to seal the meeting agenda, i.e., the fourth page of Exhibit 3 to plaintiffs' February 27, 2024 ex parte application. ROA 265. For the following reasons, defendant's motion to seal Trial Exhibit 81 is denied as moot, and defendant's motion to seal the meeting agenda, i.e., Trial